

A

MEASURE

PASSED BY

The National Assembly of the Church of England

To provide for the payment of supplementary pensions to certain persons in receipt of pensions under the Clergy Pensions Measures, 1926 to 1936, and the Clergy Pensions (Older Incumbents) Measure, 1930.

[22nd May 1946.]

1. Subject to the provisions of this Measure any person Applications on becoming a pensioner or at any time thereafter while he is a for supple- pensioner may, if he considers that his total income for the mentary pensions. current specified period is or is likely to be at a rate less than a yearly rate of two hundred and fifty pounds, apply to the pensions authority in such manner as the pensions authority may think sufficient to be granted a supplementary pension under this Measure of an appropriate amount for that specified period.

2.—(1) The pensions authority shall on receipt of every such Payment of application make an estimate of the total income of the applicant supplementary for the specified period to which his application relates in such pensions. manner as it may think sufficient, and in every case in which it estimates the applicant's total income for that specified period to be at a rate less than a yearly rate of two hundred and fifty pounds, the pensions authority shall, subject to the provisions of this Measure grant to the applicant a supplementary pension of the appropriate amount for that specified period.

(2) The provisions of section six of the Clergy Pensions 16 & 17 Geo. 5. Measure, 1926 (which relate to the mode of payment of pensions), No. 6. shall apply to a supplementary pension under this Measure.

3. The pensions authority shall pay all supplementary Supplementary pensions granted under this Measure out of such part of the tary pensions Clergy Pensions Fund or the income thereof as it thinks fit: up to a total maximum of £250,000 payable out of Clergy Pensions Fund.

Provided that:—

(a) the payment out of the Clergy Pensions Fund of pensions under the Clergy Pensions Measures, 1926 to 1936, shall rank in priority to and shall not be prejudiced by the payment of supplementary pensions thereout under this Measure, which supplementary pensions shall for

this purpose abate if and in so far as the pensions authority considers such abatement necessary ; and

- (b) as soon as the aggregate of the supplementary pensions paid out of the Clergy Pensions Fund or the income thereof reaches the sum of two hundred and fifty thousand pounds, no further supplementary pensions shall be granted under this Measure and the supplementary pensions already granted in respect of specified periods consisting of or occurring in the calendar year in which that sum is reached shall abate accordingly.

Determination
of questions.

4. If any question shall arise :—

- (a) as to the correctness of any estimate of an applicant's total income, or
(b) as to the manner in which a supplementary pension must abate in order to comply with any of the terms of the proviso to section three of this Measure,

such question shall be decided in the manner provided by section twenty-three of the Clergy Pensions Measure, 1926.

Interpretation.

5. In this Measure the following expressions have the meanings hereby assigned to them, that is to say :—

- (a) " Pensioner " means the recipient of a pension under the Clergy Pensions Measures, 1926 to 1936, or of an older incumbent's pension under the Clergy Pensions (Older Incumbents) Measure, 1930.

20 & 21 Geo. 5.
No. 6.

- (b) " Total Income " means in relation to any pensioner the total income of that pensioner from all sources as estimated by the pensions authority for the purposes of this Measure, provided that in the case of a pensioner living with his wife the expression means the aggregate of his total income and that of his wife as so estimated :

Provided also that in estimating the total income of any pensioner or his wife the pensions authority shall be entitled to disregard such part of the income of the person in question as in the special circumstances of the case it shall think proper.

- (c) " Specified Period " in relation to any calendar year during the whole of which a person is a pensioner means the whole of that calendar year and in relation to any calendar year during a part only of which a person is a pensioner means that part of that calendar year during which he is a pensioner.

- (d) " Appropriate Amount " in relation to a supplementary pension payable to a pensioner under this Measure in respect of any specified period means one half of the amount by which the sum of two hundred and fifty

pounds exceeds that pensioner's total income for the specified period if it consists of a whole calendar year and one half of the amount by which a proportionate part of the sum of two hundred and fifty pounds exceeds that pensioner's total income for that specified period if it consists of a part of a calendar year.

- (e) "Clergy Pensions Fund" means the Clergy Pensions Fund established under section twenty-four of the Clergy Pensions Measure, 1926, and includes all moneys investments and property standing to the credit of that fund whether carried to the credit of any separate account or not.

6.—(1) This Measure may be cited as the Clergy Pensions Short title
(Supplementary Pensions) Measure, 1946, and shall, subject to and com-
the provisions of section five hereof, be construed as one with mendment.
the Clergy Pensions Measures, 1926 to 1936, and the Clergy
Pensions (Older Incumbents) Measure, 1930, and those Measures
and this Measure may be cited together as the Clergy Pensions
Measures, 1926 to 1946.

(2) This Measure shall have effect as from the first day of January, 1946.